

CONSTITUTION OF THE INTERFRATERNITY COUNCIL OF FURMAN UNIVERSITY

(As Amended October 16, 2018)

We, the members of the Interfraternity Council, in order to improve the general condition of member fraternities through cooperation, to strengthen ourselves through a system of self-government, and to establish better relations with the administration and faculty of Furman University, do hereby establish this Constitution of the Interfraternity Council.

ARTICLE I: NAME

The name of this organization shall be the Interfraternity Council (IFC) of Furman University.

ARTICLE II: PURPOSE

Section I. The Interfraternity Council of Furman University serves as the governing body of all recognized social fraternities.

Section II. We, the Interfraternity Council at **Furman University** believe in:

- A. Citizenship: Fraternity men must be responsible, respectful and inclusive citizens of their community.
- B. Accountability: Fraternity men have the responsibility to hold each other accountable to their fraternal ideals and expectations.
- C. Choice: Fraternities have the responsibility and right to select men who align with their ideals and expectations.
- D. Opportunity: Every man has the right to seek membership in a fraternal experience on terms he determines best fit his needs.
- E. Fairness: For justice to effectively be administered, fraternity members and organizations must provide and be afforded fundamental due process rights.
- F. Interfraternalism: NIC member chapters stand in solidarity for fellow member chapters that meet NIC Standards.

The purpose of the IFC shall be to:

- A. Provide a peer governance structure for its member chapters;
- B. Enforce and hold member chapters accountable to the IFC Code of Conduct and other governing documents;
- C. Develop policies and procedures to provide safe and healthy membership experiences;
- D. Develop policies and procedures to provide safe and healthy social experiences;
- E. Advocate for appropriate levels of university financial and staffing support;
- F. Promote the interests of its member chapters;
- G. Promote the interests of men's fraternities in general;
- H. Discuss questions of mutual interest and present to its member chapters such recommendations as the IFC deems appropriate;
- I. Promote the interests of **Furman University**

- J. Promote mutual cooperation between its member chapters;
- K. Promote mutual cooperation between the IFC, fellow governing councils, and student organizations at **Furman University**; and
- L. Promote mutual cooperation between the IFC and **Furman University**, its students, faculty, staff, and local community.

ARTICLE III: MEMBERSHIP

Section I. Membership Eligibility

- A. Membership in the IFC is open to chapters and colonies of fraternities at **Furman University**, as follows:
 - 1. Any chapter or colony of a North American Interfraternity Conference (NIC) member organization shall hold membership in the IFC.
 - 2. Any chapter or colony of a local, state, regional, or inter/national fraternity, which is not a member of the NIC, may hold membership in the IFC.
- B. The IFC will not recognize chapters that have been suspended or have had the charter revoked by the inter/national organization or Furman University.

Section II. Membership Classification for Member Chapters

The membership classification of member chapters shall be as follows

- A. Full Member: Any fraternity chapter which has obtained its charter from its inter/national organization, or any local fraternity chapter. Full Membership grants the member chapter all rights, privileges and responsibilities under the IFC Constitution and Bylaws.
- B. Associate Member: Any fraternity colony of an inter/national organization. Associate Membership grants the member chapter all rights, privileges, and responsibilities under the IFC Constitution and Bylaws, except that it cannot hold IFC Executive Board positions nor have an IFC Judicial Board Justice.

For the purpose of this Constitution and the IFC Bylaws, both Full Members and Associate Members are referred to as member chapters.

Section III. Member Chapter Minimum Expectations

Each member chapter shall adhere to and abide by the following minimum expectations:

- A. Each member chapter shall comply with all policies set forth by:
 - 1. The North American Interfraternity Conference (NIC).
 - 2. The IFC Constitution, Bylaws, Code of Conduct, and other policies.
 - 3. The rules and regulations of **Furman University** **unless** they are in violation of NIC standards or practices.
 - 4. The general values-based conduct of fraternity men.
- B. Each member chapter shall maintain a minimum chapter annual cumulative GPA of 2.70 and a minimum new member class GPA of 2.70 or be at/or above the institution's all-men's grade point average if that grade point average is below a 2.70.
- C. Each member chapter shall be current on all IFC dues owed.

- D. Each member chapter shall keep their chapter roster current with the Office of Fraternity and Sorority Life.
- E. Each member chapter shall comply with the attendance policies for the IFC General Body and the IFC Judicial Board, as outlined within this Constitution.

A member chapter which has failed to meet any of the minimum expectations outlined in this Section shall be referred to the IFC Vice President of Judicial Affairs for potential judicial review.

Section IV. Membership Status for Member Chapters

The membership status of member chapters shall be as follows:

- A. Good Standing: A member chapter shall be deemed to be in Good Standing if the member chapter is not currently operating under Non-Status Sanctions or Status Sanctions, as defined within the IFC Bylaws, and is currently meeting the minimum expectations outlined in Section II of this Article.
- B. Good Standing on Probation: A member chapter shall be deemed to be in Good Standing on Probation if the member chapter is currently operating under Non-Status Sanctions and currently meets the minimum expectations outlined in Section II of this Article.
- C. Poor Standing: A member chapter shall be deemed to be in Poor Standing if the member chapter has been placed under Suspension by the IFC or has currently failed to meet the minimum expectations outlined in Section II of this Article.

Section V. Individual Member Definitions

For the purpose of this Constitution and Bylaws, and with an understanding that each member chapter may have its own terminology for internal use, individuals will be defined as follows:

- A. Initiated Member: An Initiated Member shall be defined as any man who has been initiated into any fraternity at **Furman University**.
- B. New Member: A New Member shall be defined as any man who has accepted a bid to join a fraternity at **Furman University**, but has not been initiated into that fraternity.
- C. Potential New Member: A Potential New Member shall be defined as any man who has not accepted a bid from any fraternity at **Furman University**.

Section VI. IFC Affirmation and Adoption of NIC Standards

The member fraternities of the NIC have passed minimum standards for all NIC member fraternities. These do not preclude the IFC or member chapters from adopting higher or additional standards. The IFC can amend its Constitution and Bylaws, adopt policies and pass resolutions, so long as those do not conflict with existing NIC Standards established to improve all facets of the fraternity experience. Further, the IFC and its member chapters will actively support and pass no policy that infringes on the associational rights of member chapters.

The IFC will pay annual dues to the NIC and affirms and adopts the NIC Standards, and each member chapter shall be required to meet the following in order to maintain IFC membership:

- A. Each member chapter shall communicate its values through its Ritual at least once annually;
- B. Each member chapter shall communicate to its Initiated Members and New Members the importance and benefits derived from continuous membership education throughout the undergraduate experience and encourage or require its Initiated Members and New Members to participate in educational programming, whether conducted by the chapter, the Interfraternity Council, **Furman University**, or independent organizations covering the following topics:
 - 1. Academic Achievement and Student Success
 - 2. Alcohol and Drug Use and Awareness
 - 3. Career Preparation
 - 4. Civic Engagement
 - 5. Hazing Awareness
 - 6. Leadership Development
 - 7. Diversity and Inclusion
 - 8. Sexual Violence Awareness
 - 9. Values and Ethics
- C. Each member chapter and the IFC shall support student choice
 - 1. Any male student should be free to join a fraternity when he determines it is in his best interest to do so.
 - 2. All fraternities should be free to determine when they wish to extend an invitation to join to a male student.
 - 3. Each member chapter shall only offer bids to join the fraternity to Potential New Members who meet the following academic requirement:
 - i. For a Potential New Member who has yet to establish a collegiate grade point average, a minimum high school grade point average of 2.50 is required.
 - ii. For a Potential New Member who has an established collegiate grade point average, a minimum collegiate grade point average of 2.50 is required.
- D. Each member chapter shall maintain an annual cumulative grade point average of a 2.70 or be at/or above the institution's all-men's grade point average if that grade point average is below a 2.70.
- E. Each member chapter shall maintain an annual cumulative grade point average for new members class of a 2.70 or be at/or above the institution's all-men's grade point average if that grade point average is below a 2.70.
- F. Each member chapter shall maintain a minimum chapter graduation rate of [X%] for four-years and [X%] for six-years.
- G. Each member chapter shall have New Member education programs lasting no longer than 6 weeks.
- H. Each member chapter shall prohibit women's auxiliary groups, such as "little sisters."
- I. Each member chapter shall have and follow risk management policies covering the following areas:
 - 1. Alcohol and Drugs
 - 2. Hazing
 - 3. Sexual Violence

4. Fire, Health and Safety

- J. Each member chapter shall prohibit the use of alcohol and drugs by all Initiated Members, New Members and Potential New Members during all recruitment activities including, but not limited to bid day events, big brother events and initiation-related activities.
- K. Each member chapter shall seek to reduce the availability and presence of alcohol in the chapter house; and caps the number of events a chapter may have with alcohol in any given term.
- L. Each member chapter shall prohibit the use of alcohol and drugs by all Initiated Members and New Members during all New Member educational programming/orientation activities.
- M. Each member chapter shall adopt a statement in support of environments that are free of hazing and sexual misconduct, as defined by their inter/national organization, within all aspects of formal and informal chapter operations.
- N. Each member chapter shall establish a medical Good Samaritan policy.
- O. Each member fraternity and the IFC and each of its member chapters must carry sufficient liability insurance coverage.
- P. Each member chapter and the IFC shall work with the campus to provide health and safety education and training provided for all chapters each term.
- Q. Each member chapter and the IFC shall establish a strategic communication plan for the IFC and its member chapters that addresses protocol for crisis response, social media, marketing and media engagement.

ARTICLE IV: REPRESENTATION

Section I. IFC General Body

The powers of the IFC shall be vested in the IFC General Body. The IFC General Body shall be the governing legislative body responsible for the general policies of the IFC, for electing its Executive Board, and for instructing its Executive Board as to the activities and operations of the IFC. All such activities shall respect the individual sovereignty and associational rights of each member chapter and shall not relinquish any governance authority to any other governing body.

Section II. IFC General Body Composition

The IFC General Body shall be composed of voting IFC Representatives, preferably each member chapter president.

Section III. IFC Representatives

Each member chapter shall have one IFC Representative, preferably its president, who serves on the IFC General Body.

Section IV. IFC Alternate Representatives

Each member chapter may also choose an IFC Alternate Representative, preferably its vice president, who shall represent that member chapter in the IFC General Body in the absence of its IFC Representative.

Section V. IFC Representative and Alternate Representative Eligibility

In order to serve as the IFC Representative or Alternate Representative, individuals must meet the following requirements:

- A. Be an Initiated Member or New Member, in good standing, of a member chapter.
- B. Maintain good academic standing with the **Furman University**.
- C. Be devoted to the general ideals and principles of fraternity life and conduct himself in a professional manner consistent with the Mission and Purpose of the IFC, as defined within this Constitution.
- D. Have a working knowledge of the IFC Constitution and Bylaws, Furman University policies, NIC Standards, and NIC Alcohol & Drug Guidelines.
- E. Not be a current member of the IFC Executive Board or currently serve as his member chapter's IFC Judicial Board Justice.

Section VI. Term of Office of IFC Representatives

The term of office for IFC Representatives, preferably the member chapter presidents, shall be until their graduation, resignation, or replacement under the procedures determined by each member chapter; or upon his election to serve on the IFC Executive Board or as his member chapter's IFC Justice for the IFC Judicial Board. Each IFC term of service begins and ends on the Spring Bid Day.

Section VII. IFC General Body Meeting Policies

The IFC General Body shall conduct its meetings according to the following requirements:

- A. The most recent edition of Robert's Rules of Order shall be used to run all meetings.
- B. A majority of member chapters present shall constitute a quorum in order to conduct IFC General Body business.
- C. The IFC General Body shall conduct regularly scheduled business meetings weekly during the academic year, unless otherwise determined by the IFC executive board.
- D. Special meetings may be called by the IFC President or Advisor at any time or at the request of two member chapters, with notice of the time, location, and purpose of the special meeting provided to all member chapters at least 72 hours in advance.
- E. Each member chapter's IFC Representative or Alternate Representative is required to attend all meetings of the IFC. More than two absences per academic year shall result in the member chapter being referred to the IFC Vice President of Judicial Affairs for potential judicial review.
- F. The date, time, and location of Business Meetings shall be determined by the Executive Council and changes will be communicated with a week's notice at minimum. Fraternity presidents should submit items of discussion to be placed on the Business Meeting agenda 24 hours in advance.

Section VIII. IFC General Body Voting Policies

The IFC General Body shall operate utilizing the following voting policies:

- A. Each member chapter, in good standing, shall have one vote.
- B. Individuals holding IFC Executive Board positions are not entitled to a vote.
- C. In the event of a tie, the IFC President shall cast the deciding vote.

- D. With the exception of the election of IFC Executive Board positions, there shall be no secret ballot votes.

ARTICLE V: IFC EXECUTIVE BOARD

Section I. IFC Executive Board

The IFC Executive Board shall be responsible for carrying out the purpose and policies of the IFC and for its day-to-day operations and activities, as directed by the IFC General Body.

Section II. IFC Executive Board Composition

The IFC Executive Board shall be composed of the following positions with duties and responsibilities outlined within the IFC Bylaws:

- A. President
- B. Vice President of Judicial Affairs
- C. Vice President of Recruitment
- D. Vice President of Administration
- E. Vice President of Community Relations
- F. Vice President of Member Development
- G. Vice President of Scholarship

Section III. IFC Executive Board Eligibility

In order to be elected and serve as a member of the IFC Executive Board, individuals must meet the following requirements:

- A. Be an Initiated Member or New Member, in good standing, of a member chapter.
- B. Maintain good academic standing with the **Furman University**.
- C. Be devoted to the general ideals and principles of fraternity life and conduct himself in a professional manner consistent with the Mission and Purpose of the IFC, as defined within this Constitution.
- D. Have a working knowledge of the IFC Constitution and Bylaws, **Furman University** policies, NIC Standards, and NIC Alcohol & Drug Guidelines.
- G. Not currently serve as his member chapter's IFC Representative, Alternate Representative, or IFC Judicial Board Justice.
- H. Must complete formal judicial policies and procedures training.

Section IV. IFC Executive Board Meeting Policies

The IFC Executive Board shall conduct its meetings according to the following requirements:

- A. The most recent edition of Robert's Rules of Order shall be used to run all meetings.
- B. A majority of IFC Executive Board members present shall constitute a quorum in order to conduct IFC Executive Board business.
- C. The IFC Executive Board shall conduct regularly scheduled meetings on a weekly basis.
- D. Special meetings may be called by the IFC President with notice of the time, location, and purpose of the special meeting provided to each IFC Executive Board member at least 72 hours in advance.

- I. Each IFC Executive Board member is required to attend all meetings of the IFC Executive Board and all meetings of the IFC General Body. Absences may result in removal from office.

Section V. IFC Executive Board Voting Policies

The IFC Executive Board shall operate utilizing the following voting policies during IFC Executive Board meetings:

- A. Each IFC Executive Board member shall have one vote.
- B. The IFC President should refrain from casting his vote except for in the event of a tie. In such instances, the IFC President shall cast the deciding vote.
- C. There shall be no secret ballot votes.

Section VI. IFC Executive Board Election Policies

The following policies and procedures shall be utilized for the election and removal of IFC Executive Board officers:

- A. Nominations for IFC Executive Board positions shall open two meetings prior to the last business meeting of each calendar year.
- B. Installation of IFC Executive Board officers shall take place on IFC's Spring Bid Day.
- C. Each IFC Executive Board officer shall be elected by a majority of the votes cast by the IFC General Body.
- D. Any individual serving in an IFC Executive Board position may be removed from his position by a 2/3 affirmative vote of the IFC General Body.
- E. In the event of a vacancy in any IFC Executive Board position, the IFC President shall appoint a successor to complete the term under the advice and consent of the remaining members of the IFC Executive Board.
- F. Should a vacancy occur in the office of the IFC President, a special election shall be held within two meetings after the vacancy was created.
- G. Section F. Each member fraternity is only allowed a maximum of two representatives on the Executive Council. The order for voting on an office shall be listed as follows: President, VP Recruitment, VP Finance, VP Public Relations, VP Philanthropy, VP University Relations. Following election of the President, he will be asked to rejoin the group for the remainder of elections. Candidates will be permitted to run for up to two offices. They will fulfill the office for which they are elected to first.

Section VII. Report of IFC Officers

A report of any newly elected or appointed IFC Executive Board officers shall be submitted to the NIC within one week of the election or appointment.

ARTICLE VI: IFC JUDICIAL BOARD

Section I. IFC Judicial Board Jurisdiction

To address issues and solve problems before others must intervene, the IFC must have a robust peer governance process that addresses violations of IFC policies and NIC Standards.

The IFC shall be a self-governing organization with an independent Judicial Board which shall have jurisdiction over cases involving alleged member chapter violations, including but not limited to:

- A. The authority of the IFC to hold member chapters accountable to the IFC Constitution, Bylaws, IFC Code of Conduct, and other policies is separate and independent from any university expectations or process related to the Student Code of Conduct.
- B. The IFC will adopt a Code of Conduct for full and associate IFC member chapters. This shall reflect the responsibilities and rights of fraternity membership, NIC Standards and recommended practices.
- C. The IFC will adopt a Constitution and Bylaws that reflects NIC Standards and recommended practices.
- D. The IFC will establish a Judicial Board with representation from full IFC members. The IFC will work with the campus to provide annual training to the Judicial Board on due process, standard of proof, and progressive, educational sanctioning.
- E. The Judicial Board shall work with the university to implement a comprehensive conduct program that enhances peer-governance; respects the authority of the university to adjudicate the Student Code of Conduct and major alleged policy violations (such as hazing and sexual misconduct); and avoids multiple, overlapping conduct processes.
 - 1. The IFC shall develop an agreement with the university that identifies the role of each body in adjudicating allegations of chapter-level misconduct.
 - 2. The IFC Judicial Board shall defer to the university to investigate and adjudicate hazing and sexual misconduct allegations, or any other allegation that is being investigated and/or adjudicated through the university's conduct process.
- F. In all other instances, the IFC Judicial Board has the autonomy and responsibility to adjudicate chapter-level violations of the IFC Constitution, bylaws, and other policies and establish educational sanctions, provided:
 - 1. Basic due process protections have been provided for the accused chapter.
 - 2. Sanctions are punitive and/or educational (but not solely punitive or financial), progressive, and do not restrict associational rights or student choice.
 - 3. An appeal process is available.
- G. The Judicial Board shall inform the inter/national organization of any charges in advance of a hearing and work collaboratively with the inter/national organization and university when adjudicating a potential violation that may result in suspension/loss of recognition from the IFC for the member chapter.
- H. The IFC will not issue blanket sanctions for chapters that have not been found responsible for policy violations (i.e. system-wide ban on activities). An exception may be made for health and safety concerns with restrictions limited to events with alcohol, provided the exception is for a defined period of no more than 30 days, with a specific plan to lift the restriction, and in accordance with powers enumerated in the IFC Constitution and Bylaws.
- I. The general values-based conduct of fraternity men.

Section II. IFC Judicial Board Composition

The IFC Judicial Board shall be composed of one IFC Justice from each member chapter, chosen by that member chapter, and shall be chaired by the IFC Vice President of Judicial Affairs.

Section III. IFC Justice Eligibility

In order to serve as the IFC Justice for a member chapter on the IFC Judicial Board, an individual must meet the following requirements:

- A. Be an Initiated Member or New Member, in good standing, of an IFC member chapter and have been affiliated for a minimum of two semesters.
- B. Possesses a minimum 2.8 GPA.
- C. Possess a student conduct record clear of violations of the Furman University Student Conduct Code.
- D. Be devoted to the general ideals and principles of fraternity life and conduct himself in a professional manner consistent with the Mission and Purpose of the IFC, as defined within this Constitution.
- E. Have a working knowledge of the IFC Constitution and Bylaws, Furman University policies, NIC Standards, and NIC Alcohol & Drug Guidelines.
- F. Not be a current member of the IFC Executive Board or serve as his member chapter's IFC Representative or Alternate Representative for the IFC General Body.
- J. Must complete formal judicial policies and procedures training prior to serving on an IFC Judicial Board hearing.

Section IV. Term of Office of IFC Justices

The term of office for IFC Justices shall be until their graduation, resignation, or replacement under the procedures determined by each member chapter; or upon his election to serve on the IFC Executive Board or as his member chapter's IFC Representative or Alternate Representative for the IFC General Body.

Section V. IFC Judicial Policy

The Judicial Board shall perform all duties and be subject to all regulations contained within the IFC Judicial Policy in the Bylaws.

Section VI. IFC Judicial Board Hearing Justice Selection

The IFC Justice whose member chapter is involved in the alleged violation shall not sit on the board for the hearing of that case.

Section VII. IFC Judicial Board Hearing Attendance

All IFC Judicial Board hearings shall be conducted in accordance with the following requirements:

- A. All IFC Justices assigned to an IFC Judicial Board hearing shall be present in order to conduct business on behalf of the IFC Judicial Board.
- B. Each IFC Justice assigned to an IFC Judicial Board hearing is required to attend the hearing. Failure of an IFC Justice to attend an IFC Judicial Board hearing for which he was assigned shall result in his member chapter being referred to the IFC Vice President of Judicial Affairs for potential judicial review.

Section VIII. IFC Judicial Board Hearing Voting Policies

All IFC Judicial Board hearings shall operate utilizing the following voting policies:

- A. Each IFC Justice serving on an IFC Judicial Board hearing shall have one vote.
- B. A majority vote shall govern all actions of an IFC Judicial Board.

ARTICLE VII: FURMAN UNIVERSITY'S GREEK REVIEW PANEL

Section I. Greek Review Panel Jurisdiction

The Greek Review Panel (GRP) provides the initial response to alleged violations by Greek Chapters that arise from:

- A. Student Organization Policies and Procedures in the Student Handbook; and
- B. Inter/national Organization Policies, in partnership with Inter/national headquarter staff

Section II. Greek Review Panel Composition

The President of IFC will serve on the GRP in accordance with university procedures. GRP procedures are defined by the university in consultation with the IFC and FPC presidents.

Section III. Greek Conduct Board

A Greek chapter may request a hearing with the Greek Conduct Board (GCB) when:

- A. It is denying responsibility for alleged violations from the Greek Review Panel;
- B. It is challenging the sanctions proposed by the Greek Review Panel, or
- C. Both.

Section IV. Greek Conduct Board Jurisdiction

The GCB has primary authority to adjudicate alleged violations by Greek Chapters that arise from:

- A. Student Organization Policies and Procedures in the Student Handbook; and
- B. Inter/national Organization Policies, in partnership with Inter/national headquarter staff

Section V. Greek Conduct Board Composition

The IFC Vice President of Judicial Affairs will serve as Co-Chair of the GCB. GCB procedures are defined by the university in consultation with the IFC and Panhellenic presidents.

ARTICLE VIII: IFC'S STANDING COMMITTEES

Section I. Standing Committees

The IFC shall have the following standing committees chaired by its respective corresponding member of the IFC Executive Board:

- A. Recruitment Committee
- B. Finance Committee
- C. Scholarship Committee

- D. Member Development Committee
- E. Community Relations Committee

Section II. Ad Hoc Committees

The IFC Executive Board or the IFC President may form ad hoc committees as deemed necessary to perform the work of the IFC. The IFC President shall appoint the ad hoc committee chairman and committee members with the concurrence of the IFC Executive Board.

Section III. IFC Committee Meeting Policies

All committees of the IFC shall conduct its meetings according to the following requirements:

- A. The most recent edition of Robert's Rules of Order shall be used to run all meetings.
- B. A majority of committee members present shall constitute a quorum in order to conduct committee business.
- C. Each committee shall meet as called by its committee chair.

ARTICLE IX: CONSTITUTIONAL AMENDMENTS

Section I. Constitutional Amendments and Bylaws

This Constitution and Bylaws may be amended by a two-thirds (2/3) affirmative vote of the IFC General Body provided notice of the proposed amendment has been provided to member chapters at the preceding regularly scheduled business meeting of the IFC General Body.

Section II. Adoption

This Constitution shall become effective and shall supersede all previous Constitutions of the IFC when adopted by a two-thirds (2/3) affirmative vote of the IFC General Body.

REVISED: March 1, 2001

REVISED: January 17, 2009

REVISED: November 19, 2012

REVISED: April 26, 2015

REVISED: November 10, 2015

REVISED: February 7, 2018

BYLAWS OF THE INTERFRATERNITY COUNCIL OF FURMAN UNIVERSITY

(As Amended October 16, 2018)

ARTICLE I – ROLE OF THE IFC REPRESENTATIVE

Section I. IFC Representative

The duties and responsibilities of all IFC Representatives are as follows:

- A. Serve as a representative and voice for his member chapter's concerns regarding the fraternity community.
- B. Represent the larger fraternity community's interests.
- C. Inform his member chapter of the actions, discussions, and workings of the IFC General Body.
- D. Serve as a liaison between the IFC General Body and his respective member chapter.
- E. Serve as an initiated member of IFC Standing Committees and Ad Hoc Committees, as necessary.
- F. Represent the highest ideals of fraternity life to the greater campus community.

ARTICLE II – ROLE OF THE IFC EXECUTIVE BOARD OFFICERS

Section I. IFC President

The duties and responsibilities of the IFC President are as follows:

- A. Provide guidance and focus to the efforts of the General Body and Executive Committee.
- B. Preside over all meetings of the General Body and Executive Committee.
- C. Cast the final vote in the event of a tie.
- D. Build rapport and establish positive working relationships between IFC and member chapter leaders.
- E. Serve as the official spokesperson for the fraternity community
- F. Establish positive working relationships with campus and local law enforcement agencies.
- G. Regularly interact with the leaders of other governing councils and campus organizations.
- H. Attends weekly meetings with the Panhellenic President and Associate Director of Fraternity and Sorority Life.
- I. Establish a working relationship with key college administrators.
- J. Establish a working relationship with and communicate campus data, issues, and trends in a timely manner to the NIC.

Section II. IFC Vice President of Judicial Affairs

The duties and responsibilities of the IFC Vice President of Judicial Affairs are as follows:

- A. Serve as chair of the IFC Judicial Board and serve as the non-voting Chief Justice of all IFC Judicial Board hearings.

- B. Investigate and refer to the IFC Judicial Board alleged violations of IFC policy, including but not limited to:
 - 1. The IFC Constitution, Bylaws, and policies;
 - 2. Federal, state, and local laws;
 - 3. The rules and regulations of Furman University; and
 - 4. The general values-based conduct of fraternity men.
- C. Ensure proper filing and preparation for all judicial actions.
- D. Ensure compliance with all IFC judicial action imposed upon a member chapter.
- E. Educate member chapters on the IFC Constitution and Bylaws, judicial processes, and risk management policies. Educate member chapters on the NIC Health and Safety Guidelines, the IFC Constitution and Bylaws, judicial processes, and risk management policies.
- F. Conduct judicial policy and procedures training for new IFC Judicial Board justices.
- G. Assist in conflict mediation between member chapters.
- H. Review all IFC governance documents, at least annually.
- I. Assist member chapters in the implementation of and compliance with the NIC Alcohol & Drug Guidelines.
- J. Coordinate Health and Safety efforts with other councils and stakeholders
- K. Provide support to chapter Risk Management and Health and Safety Officers.

Section III. IFC Vice President of Recruitment

The duties and responsibilities of the IFC Vice President of Recruitment are as follows:

- A. Work with member chapters to establish a recruitment process that meets the needs of chapters and potential new members, as well as provides opportunities for interested men to learn about the fraternity experience.
- B. Will focus on fostering interest in joining fraternities and marketing the fraternity experience to incoming students and potential new members.
- C. Serve as chair of the IFC Recruitment Committee.
- D. Utilize technology (social media, etc.) in recruitment and marketing efforts.
- E. Produce and distribute promotional materials to all incoming students and unaffiliated students.
- F. Develop recruitment workshops and programs for member chapters.
- G. Uphold the IFC Recruitment Policy and ensure no restrictive policies are placed on new member recruitment and will not restrict the ability of chapters to distribute bids outside of any designated recruitment period.
- H. Maintain an interest list of Potential New Members.
- I. Collect and maintain accurate New Member Rosters for each member chapter.
- J. Provide advice and support to member chapter recruitment officers.

Section IV. IFC Vice President of Administration

The duties and responsibilities of the IFC Vice President of Administration are as follows:

- A. Serve as chair of the IFC Finance Committee.
- B. Record minutes of each executive and business meeting.
- C. Conduct correspondence at the direction of the President.
- D. Supervise the annual budget process.
- E. Collect IFC member chapter dues or other assessments as needed.

- F. Maintain accurate records throughout the year through invoicing and receipts.
- G. Review and approve all IFC expenditures and reimbursements.
- H. Make all disbursements with a cosigner.
- I. Prepare financial statements monthly and at the end of each term for distribution to all member chapters.
- J. Make bank deposits when necessary and in a timely manner.
- K. Provide advice and support to member chapter financial officers.

Section V. IFC Vice President of Community Relations

The duties and responsibilities of the IFC Vice President of Community Relations are as follows:

- A. Develop and execute a public relations and social media strategy.
- B. Develop service projects and philanthropic events for member chapters.
- C. Collect and report member chapter community service hours, philanthropic dollars, and activities.
- D. Collect and disseminate information on the fraternity community to all campus and community media sources.
- E. Keep the media informed on upcoming events or potential news.
- F. Establish a positive working relationship with external constituents.
- G. Assist in the development of various IFC publications and outreach programs.
- H. Provide advice and support to member chapter community service/philanthropy officers.
- I. Lead the Greek Week committee in conjunction with the Panhellenic Association.
- J. Serve as chair of the IFC Community Relations Committee.

Section VI. IFC Vice President of Member Development

The duties and responsibilities of the IFC Vice President of Member Development are as follows:

- A. Develop best practices for new member and member education programs for member chapters.
- B. Collect and report new member retention, academic, and involvement statistics.
- C. Organize, develop, and implement a new member orientation program in coordination with the Panhellenic VP of Recruitment Counselors and the Associate Director of Fraternity and Sorority Life.
- D. Develop opportunities for continuing member education by collaborating with alumni, **Furman University** offices and departments, and student organizations to offer educational programming covering the following topics: academic achievement, alcohol consumption, career preparation, civic engagement, hazing, leadership development, sexual assault/abuse, and values and ethics.
- E. Provide advice and support to member chapter member development officers.
- F. Coordinate diversity and inclusion programming for member chapters and promote inclusion within member chapters in order to make the fraternity community more welcoming and inclusive to individuals from diverse backgrounds.
- G. Collect and distribute information about campus diversity and inclusion programming and resources.

- H. Build and maintain relationships with faculty, academic offices, and/or departments that support diversity and inclusion.
- I. Provide advice and support to member chapter new member education officers and programming officers to provide diversity and inclusion programming.
- J. Serve as chair of the IFC Membership Development Committee.

Section VII. IFC Vice President of Scholarship

The duties and responsibilities of the IFC Vice President of Scholarship are as follows:

- A. Coordinate a scholarship chair orientation program for member chapters.
- B. Collect and distribute academic performance rankings.
- C. Publish important academic dates and deadlines.
- D. Collect and distribute information about campus academic services, such as tutors, the writing lab, math lab, learning assistance programs, interest tests, career counseling, placement workshops, and library resources.
- E. Work individually with member chapter scholarship chairs below the all-men's grade point average.
- F. Build and maintain relationships with faculty, academic offices, and academic honorary societies.
- G. Provide advice and support to member chapter scholarship officers.
- H. Serve as chair of the IFC Scholarship Committee.

ARTICLE III – ROLE OF THE IFC JUSTICE

Section I. IFC Justice

The duties and responsibilities of an IFC Justice are as follows:

- A. Serve as an impartial justice, as called, on IFC Judicial Board hearings.
- B. Uphold:
 - 1. the IFC Constitution, Bylaws, Code of Conduct, and policies;
 - 2. the rules and regulations of Furman University; and
 - 3. the general values-based conduct of fraternity men.
- C. Maintain confidentiality in all judicial hearings, matters, and deliberations.

ARTICLE IV – ROLE OF IFC STANDING COMMITTEES

Section I. IFC Recruitment Committee

The IFC Recruitment Committee shall assist the IFC Vice President of Recruitment in the development and implementation of activities, programs, and resources that foster its member chapters' ability to implement a successful and quality recruitment effort while ensuring no restrictive policies are imposed on new member recruitment and will not restrict the ability of chapters to distribute bids outside of any designated recruitment period. The IFC Recruitment Committee shall work with the IFC Vice President of Recruitment and member chapters to establish a recruitment process that meets the needs of chapters and potential new members, as well as provides opportunities for interested men to learn about

the fraternity experience. They will focus on fostering interest in joining fraternities and marketing the fraternity experience to incoming students and potential new members.

Section II. IFC Finance Committee

The IFC Finance Committee shall assist the IFC Vice President of Finance in the development of IFC fiscal policies, annual budgets, and programs that assist member chapters' financial officers. The Committee shall also review and/or propose changes to the IFC dues structure.

Section III. IFC Scholarship Committee

The IFC Scholarship Committee shall assist the IFC Vice President of Scholarship in the development and implementation of activities, programs, and resources that promote academic achievement within its member chapters.

Section IV. IFC Member Development Committee

The IFC Member Development Committee shall assist the IFC Vice President of Member Development in the development and implementation of activities, programs, and resources for continuing and new member development covering topics such as alcohol consumption, career preparation, civic engagement, hazing, leadership development, sexual assault/abuse, and values and ethics, as well as, in the development and proposal of recommended diversity and inclusion educational programming for the IFC and its member chapters.

Section V. IFC Community Relations Committee

The IFC Community Relations Committee shall assist the IFC Vice President of Community Relations in the development and implementation of activities, programs, and resources that promote the fraternity community and the encouragement of member chapter involvement in service and philanthropic endeavors that enhance the reputation of the fraternity community at Furman University.

ARTICLE V – ROLE OF THE IFC ADVISOR

Section I. IFC Advisor

The IFC Advisor should work to support all NIC Standards, policies and practices. In addition, in accordance with the Standards and Guidelines for Fraternity and Sorority Advising Programs of the Council for the Advancement of Standards in Higher Education (CAS), the duties and responsibilities of the IFC Advisor are as follows:

- A. Advise the IFC and its member chapters.
- B. Advise and consult with the IFC Judicial Board on all conduct cases.
- C. Advise financial processes.
- D. Facilitate or provide resources, including potential presenters of campus or national renown to conduct workshops, programs, retreats, and seminars on relevant topics, including the following:
 1. Multicultural Competence
 2. Leadership Development

- 3. Recruitment and Intake
- 4. Risk Management
- E. Monitor membership and academic retention by member chapter and the entire community for purposes of improving academic support and recommending intervention strategies.
- F. Gather and disseminate information via meetings, websites, newsletters, social media venues, and/or information bulletins to the various entities in fraternity life.
- G. Provide assistance and advice in planning and assessing IFC and member chapter programs.
- H. Organize and facilitate leadership programs, retreats, and workshops.
- I. Connect the Members and New Members of member chapters to leadership opportunities across campus, in the local community, and within their inter/national organizations.
- J. Publish or share documents that focus on current events, leadership opportunities, trends, and other information regarding fraternity life.
- K. Provide for the recording and archiving of information about the fraternal community and encourage member chapter leaders to do the same within their organizations.

ARTICLE VI – MEMBERSHIP RECRUITMENT

Section I. Eligibility

A male student must meet the following qualifications to be eligible for membership in a fraternity:

- A. Must have earned 12 credit hours as recognized by Furman University.
- B. Must have an overall grade-point average of 2.5.

Meeting eligibility requirements does not guarantee a student will receive a bid, and additionally, receiving a bid does not guarantee a student full membership with any fraternity.

Section II. Open Recruitment

The rules open recruitment will be as following:

- A. Member fraternities can elect to extend bids to students who meet the eligibility criteria at any time during the academic year.
- B. All Fraternities will observe dry recruitment. No alcohol will be served, or present in any recruitment event of any capacity.
- C. No women should be present at any recruitment event.

Section III. Formal Recruitment

Formal recruitment shall consist of, but not be limited to, the following events:

- A. Open House: Held during the fall semester and open to all male students. Member fraternities not in attendance will be fined \$100. Each fraternity must disclose the chapter's most recent GPA, the amount of semester and yearly dues, and the expectations of each member.
- B. Smokers: Smokers will last one hour, and the location will be up to the discretion of the hosting fraternity. There will be a 15 minute transition time from one smoker to the next.

- C. Recruitment Orientation: During the first night of the week of Formal Recruitment, there shall be an orientation for all male students registered for recruitment. This orientation is mandatory for all potential new members. Recruitment schedules and rules will be presented and each chapter will give a short presentation including the chapter's most recent GPA, the amount of semester and yearly dues, and the expectations of each member.
- D. Invite Rounds: Invitational rounds will be an hour long and will be spaced evenly so that prospective new members will have adequate times to move from one to the other if they are invited to multiple events. The time schedule will be specified by the Furman Interfraternity Council. The location will be up to the discretion of the hosting fraternity.
- E. Intention Round: Intention rounds will be one hour long. There will be a 30 minute window after the conclusion of each Intention Round so that prospective new members may have adequate time to transfer if necessary. Prospective new members are allowed to attend no more than two Intention Rounds. The time schedule will be specified by the Furman Interfraternity Council. The location will be up to the discretion of the hosting fraternity.
- F. Bid Day: Bid Day will be held on campus marking the end of Formal Recruitment. Potential New Members will attend the Bid Ceremony to receive their bids. If they have not received a bid from their first choice, they can accept or decline their second choice (when applicable).

Section IV. Formal Recruitment Rules

- A. The rules Formal Recruitment will be as following:
- B. Students wishing to pursue a bid through formal recruitment fraternity must be registered with IFC by the start of the Recruitment Orientation. This includes paying the registration fee.
- C. All Fraternities will observe dry recruitment. No alcohol will be served, or present in any Recruitment event of any capacity.
- D. No women should be present at any recruitment event.
- E. All dates and times will be specified and published by the IFC of Furman University.
- F. During any Formal Recruitment event, no brother of any fraternity will attempt to contact a prospective new member while they are attending another fraternities' Formal Recruitment event.
- G. There will be a silence period observed by all fraternities after the conclusion of the Recruitment Orientation until Bid Day. Silence period is defined as no communication, in any form, including but not limited to, e-mail, texting, calling, the use of non-members, talking, social media, etc. Any communication regarding an official University matter (e.g. academics, athletics, student organization business, residence life, etc.) should not include any discussion of fraternity.
- H. Each fraternity will be required to turn in a list of invitations and attendees from their Invitation and Intention Rounds to the Associate Director of Fraternity and Sorority Life. Attendee lists are due one hour after the event concludes. Invitation lists are due by:
 - 1. Invitation Rounds: midnight after Recruitment Orientation
 - 2. Intention Rounds: midnight following the conclusion of the final Invitation Round
- I. Each fraternity will provide a list of men to whom they are extending bids to the Associate Director of Fraternity and Sorority Life by midnight the night before Bid Day.
- J. Open recruitment will resume at the conclusion of the IFC Bid Day ceremony.

ARTICLE VII – FINANCIAL MANAGEMENT POLICY

Section I. Fiscal Year

The IFC Fiscal Year shall be from July 1st to June 30th.

Section II. IFC Annual Budget

The Vice President of Finance and the IFC Finance Committee shall propose an annual budget to the IFC Executive Board by March 15th. Upon adoption by the IFC Executive Board, the budget shall be presented to the IFC General Body for ratification.

Section III. IFC Contingency Account

The IFC Budget shall include a contingency account that equals 10-15% of the overall expenses. The contingency account shall be utilized for cost overruns in budgeted areas and/or unanticipated, unbudgeted items, such as new IFC programs developed after the budget was finalized. At the end of the fiscal year, any amount remaining in the IFC Contingency Account shall be carried over to the next fiscal year.

Section IV. Appropriate Use of IFC Funds

IFC funds are under the jurisdiction of the IFC member chapters and shall only be used in a manner that benefits the fraternity community and that is congruent with the values of fraternity life. IFC funds shall not be used to purchase alcoholic beverages.

Section V. Expenditures and Reimbursements

The IFC President and the IFC Vice President of Finance shall approve all budgetary expenditures. Individuals or member chapters conducting business on behalf of the IFC may request a reimbursement for their expenses.

Section VI. Signature Requirements for Financial Accounts and Transactions

The signature of both the IFC President and IFC Vice President of Finance shall be required on all IFC financial accounts and transactions.

Section VII. Financial Reporting

The IFC Vice President of Finance shall provide a financial report to the IFC General Body on a monthly basis including all income and expenses during the given period of time and in relation to the overall budget for each line item.

Section VIII. Financial Record Keeping

The IFC Vice President of Finance shall maintain accurate and organized financial records consisting of all receipts and invoices, copies of all monetary disbursements and deposits, IFC financial forms and reports, actual dues levied, canceled checks, ledgers, and journals.

Section IX. Independent Annual Financial Audit

An independent audit of all IFC financial accounts shall occur within two weeks of the end of the fiscal year by a certified public accountant.

ARTICLE VIII – MEMBER CHAPTER FINANCIAL OBLIGATIONS

Section I. IFC Initiated Member Chapter Dues

The term dues for each member chapter shall be fixed at \$20 per initiated member and \$25 per new member (paid in the semester in which the new member joins).

Section II. Establishment of IFC Member Chapter Dues

Any proposed amendment to the established per initiated member dues in Section I of this Article shall be initiated utilizing the following protocol:

- A. If the IFC Executive Board determines a need to amend the established per initiated member dues amount, it shall charge the IFC Finance Committee with assessing the current dues amount and providing a recommendation for possible amendments.
- B. The IFC Executive Board shall consider any recommendations made by the IFC Finance Committee and propose an amendment to the dues amount to the IFC General Body.
- C. A 2/3 vote of the IFC General Body is required to amend the IFC member chapter dues amount.

Section III. IFC Member Chapter Dues Assessment

The aggregate total of dues assessed shall be based upon each member chapter's term Initiated Member Roster that is filed with the Office of Fraternity and Sorority Life. The IFC Vice President of Finance shall invoice each member chapter within one week of receipt of an Initiated Member Roster or New Member Roster. Invoices shall be paid within two weeks of receipt.

Section IV. Delinquent Payments

Any amount unpaid by the due date shall result in a 10% penalty and loss of representation in the IFC General Body until payment has been made. Any amount unpaid within one month of the due date shall result in the member chapter being referred to the IFC Vice President of Judicial Affairs for possible judicial action.

ARTICLE IX: EXPANSION POLICY

Section I General Philosophy

Realizing the importance of controlled growth to the continuance of the IFC men's fraternity community, the Interfraternity Council of Furman University hereby sets forth the following policy and procedures for expansion and colonization on the Furman University campus.

- A. The IFC and the University jointly reserve the right to invite specific national fraternities to colonize at the University.
- B. All fraternities shall be subject to the expansion policy from the time of first contact with the IFC and/or the Greek Life staff until accepted as a member of the IFC.
- C. Expansion is a step by step process and the completion of one or more steps in no way guarantees a commitment to extend an invitation to colonize.

- D. The University does not recognize local fraternities. All men's fraternities who desire membership in the IFC at Furman University must have affiliation with a national organization.
- E. Failure of a national organization to adhere to the IFC and University policy may result in lack of recognition in the future.
- F. IFC may decide at any time to create and/or change any expansionary policy(ies) with a 2/3 majority vote.

Section II Expansion Process

Fraternity expansion at Furman University shall follow the following steps

A. Discussion

- 1. To begin the Discussion Stage, a motion must be made to discuss expansion and form an expansion committee. The committee will be comprised of the IFC executive board and the chapter representatives.
- 2. As their primary mission, the council shall review the current climate of the IFC fraternity community at Furman University to determine the viability of a potential chapter. This review should focus on the interest of unaffiliated male students on campus and their interest in a new opportunity for fraternity membership.
- 3. The Interfraternity Council's concerns should be for the long-term benefit of all male students to have the opportunity to join a fraternity and the benefit of such a chapter to the Furman community.
- 4. All action in the area of colonization must be approved and sanctioned by the committee.
- 5. Discussion in the committee to approve or reject the motion for expansion will last no less than two weeks.
- 6. If the motion for expansion is approved, the committee will move on to the Inquiry phase.

B. Inquiry

- 1. The IFC President shall compose a notice extending the invitation for national fraternities not represented on campus to submit a letter of interest of expansion to the University by a predetermined deadline. The invitation should include a copy of pertinent campus policies, including the Expansion Policy.
- 2. Any interested fraternity must provide the following information, at minimum, to the Interfraternity Council:
 - a. Number of alumni within a 50-mile radius of Greenville;
 - b. Number of colonization attempts in the last five (5) years, their respective status, and the names of the institutions at which they are located;
 - c. Number of colonization attempts presently pending and the names of the respective institutions;
 - d. Name of the institution hosting the nearest chartered chapter of the fraternity and its status;
 - e. The ratio of field staff/consultants to chapters/colonies and the set visitation program;
 - f. Reason for interest in colonizing at Furman University
 - g. The fraternity, its constitution and its governing laws shall be in compliance with Furman's student organization policies

3. All members of the committee shall take time to review the materials received in order to familiarize themselves with all the respective fraternities' programs and philosophies prior to any discussion on such information.
4. No sooner than two weeks after the submission deadline, the committee will reconvene to open discussion on which fraternities to invite to present on campus.
5. Upon review of submitted information, the Interfraternity Council shall develop a group no larger than three candidate fraternities per expansion opening. These groups will be invited to visit the campus and make presentations before the full IFC and interested Student Life staff for the purpose of mutual evaluation in the Selection phase.

C. Selection

1. The IFC President shall compose a letter to those finalists inviting them to campus for the purpose of educating the full community on the philosophies and programs of the fraternity.
2. Fraternity visits shall be conducted on separate dates, predetermined by the Expansion committee.
3. The Interfraternity Council shall prepare ranking sheets for the evaluating members to use in determining fraternity rankings towards potential colonization. The following criteria shall be considered in selection of colonizing fraternities (in no particular order):
 - a) Success ratio of colonization over the past 5 years;
 - b) Number of alumni within a 50-mile radius of Greenville;
 - c) Number of chapters within a 250-mile radius of Greenville;
 - d) Location of national headquarters and respective staff members;
 - e) Completeness of requested application materials;
 - f) Timeliness of application materials;
 - g) Former affiliation with Furman University;
 - h) Specific student, faculty, and/or staff interest in establishing a new chapter;
 - i) Demonstrated interest by the fraternity; and
 - j) Quality of presentation by those fraternities invited to appear before IFC.
4. Following the final presentation of the national fraternities, the expansion committee will meet to select the fraternity that will be invited to expand.
5. The invited group must attain a majority vote by the IFC. Therefore, if there are three groups invited to present and none receives a majority on the first ballot, the group with the lowest number of votes will be removed and a second vote will be taken between the two groups receiving the highest vote totals.
6. Upon selection of a fraternity, IFC's President will present to the Vice President for Student Life the recommendation and desire to extend an invitation to the selected fraternity. A letter shall be sent to the Vice President for Student Life advising him/her of the IFC approval of a particular fraternity's colonization. With his/her agreement, a joint invitation will be extended to the approved fraternity.
 - a) The Vice President for Student Life shall have the opportunity to review the IFC decision in an open forum and make final decision to approve or disapprove the IFC recommendations.
7. After University approval is granted, the IFC President shall compose a letter of invitation to the selected fraternity to expand on campus.

8. If the invited fraternity declines, IFC may then invite the next fraternity on the priority list.
9. The Interfraternity Council shall keep on file for two calendar years the information submitted from all fraternities not selected for colonization.

Section III Colonization

- A. Upon receipt of the fraternity's acceptance, the IFC and IFC Advisor shall work with the appropriate national fraternity staff member(s) to offer any assistance possible to ensure the success of the colonization.
- B. The beginning date of the colonization will be decided by the IFC in consultation with the respective fraternity.
- C. The rights and privileges afforded the colony shall include the below-listed items. If necessary and at their discretion, IFC may waive any of the following requirements. The colony shall:
 1. Be permitted to recruit potential new members who meet membership eligibility criteria
 2. Attend all IFC meetings and pay IFC dues
 3. Receive all services granted to full status members of IFC
 4. Have a cumulative chapter GPA (from the time the colony was formed) at or above the IFC average of the previous semester
 5. Report a minimum of 5 hours community service per member per semester
 6. Maintain a faculty or staff advisor and keep the individual's name and contact information on file with the Office of Fraternity and Sorority Life
 7. Maintain an active alumni advisory committee as prescribed through the national fraternity
 8. Comply with all University and IFC rules and regulations, policies, and procedures
 9. As represented by the colony president, meet with the IFC advisor and the IFC president on a monthly basis
 10. Provide IFC with a semesterly report on the status of the colony
 11. Participate in all Fraternity and Sorority community initiatives
 12. Have a national representative visit a minimum of once each semester for as long as it exists as a colony of the national fraternity; and
 13. Function as a colony for no less than one academic semester and no more than two years.

ARTICLE X – IFC CODE OF CONDUCT

Section I. IFC Judicial Board Jurisdiction

The IFC shall be a peer-governing organization with an independent Judicial Board, which shall have jurisdiction over cases involving alleged member chapter violations, including but not limited to:

- A. The IFC Constitution, Bylaws, Code of Conduct, and other policies.
- B. The general values-based conduct of fraternity men.

The IFC Judicial Board shall work with the campus to implement a comprehensive conduct program that enhances peer-governance; respects the authority of the campus to adjudicate alleged violations of the Student Code of Conduct; and avoids multiple, overlapping conduct processes.

- A. The IFC shall develop an agreement with the campus that identifies the role of each judicial body in adjudicating allegations of chapter-level misconduct.
- B. The IFC Standards Board shall defer to the campus to investigate and adjudicate hazing and sexual misconduct allegations, or any other allegation that is being investigated and/or adjudicated through the campus' conduct process.
- C. For all other instances—outside of hazing and sexual misconduct—the Standards Board has the autonomy and responsibility to adjudicate chapter-level violations.

Section II. IFC Judicial Committee Composition

The IFC Judicial Board shall be composed of one IFC Justice from each full IFC member chapter, chosen by that member chapter, and shall be chaired by the IFC Vice President of Judicial Affairs.

Section III. IFC Justice Eligibility

To serve as the IFC Justice for a member chapter on the IFC Judicial Board, an individual must meet the following requirements:

- A. Be an Initiated Member or New Member, in good standing, of an IFC member chapter and have been affiliated for a minimum of two semesters.
- B. Possesses a minimum 2.8 GPA.
- C. Possess a student conduct record clear of violations of the Furman University Student Conduct Code.
- D. Be devoted to the general ideals and principles of fraternity life and conduct himself in a professional manner consistent with the Mission and Purpose of the IFC, as defined within this Constitution.
- E. Have a working knowledge of the IFC Constitution and Bylaws, Furman University policies, NIC Standards, and NIC Alcohol & Drug Guidelines.
- F. Not be a current member of the IFC Executive Board or serve as his member chapter's IFC Representative or Alternate Representative for the IFC General Body.
- K. Must complete formal judicial policies and procedures training prior to serving on an IFC Judicial Board hearing.

Section IV. Term of Office of IFC Justices

The term of office for IFC Justices shall be until their graduation, resignation, or replacement under the procedures determined by each member chapter; or upon his election to serve on the IFC Executive Board or as his member chapter's IFC Representative or Alternate Representative for the IFC General Body.

Section V. IFC Judicial Policy

The Judicial Board shall perform all duties and be subject to all regulations contained within the IFC Judicial Code in the Bylaws.

Section VI. IFC Judicial Board Hearing Justice Selection

The IFC Justice whose member chapter is involved in the alleged violation shall not sit on the board for the hearing of that case.

Section VII. IFC Judicial Board Hearing Attendance

All IFC Judicial Board hearings shall be conducted in accordance with the following requirements:

- A. All IFC Justices assigned to a hearing shall be present in order to conduct business on behalf of the IFC Judicial Board.
- B. Each IFC Justice assigned to a hearing is required to attend. Failure of an IFC Justice to attend a hearing for which he was assigned shall result in his member chapter being referred to the IFC Vice President of Judicial Affairs for potential judicial review.

Section VIII. IFC Judicial Board Hearing Voting Policies

All IFC Judicial Board hearings shall operate utilizing the following voting policies:

- A. Each IFC Justice serving on a hearing shall have one vote.
- B. A majority vote shall govern all actions of an IFC Judicial Board.

Article XI – IFC Judicial Procedures

Section I. IFC Judicial Powers and Responsibilities

Per Article VI, Section I of the IFC Constitution, the IFC shall be a peer-governing organization with an independent Judicial Board that shall have jurisdiction over cases involving alleged member chapter violations of IFC policy, including but not limited to:

- A. The IFC Constitution, Bylaws, Code of Conduct, and policies;
- B. The general values-based conduct of fraternity men.

Section II. Due Process

In appearing before the Judicial Board, each member chapter shall be granted certain rights termed “due process.” Those rights are:

- A. Right to be notified, in writing, of all charges, as outlined in the Bylaws;
- B. Right to present a defense, including the calling of witnesses;
- C. Right to question witnesses;
- D. Right to be accompanied by an advisor for advisory purposes only, but not for representation;
- E. Right to be notified, in writing, of all findings and sanctions imposed, as outlined in the Bylaws;
- F. Right to appeal the decision, as outlined in the Bylaws.
- G. Right to be free from double jeopardy.

Section III. Filing of Complaints

Any individual or group may file a complaint against a member chapter, specifying in writing the particular alleged acts of the accused. This must be done by submitting an IFC Judicial Complaint Form to the IFC Vice President of Judicial Affairs. The IFC Vice President of Judicial Affairs shall promptly review and investigate the allegation. Upon

determination that an allegation contains information sufficient to warrant further adjudication, the IFC Vice President of Judicial Affairs may charge a member chapter with a violation.

Section IV. Notification of Charges

Once the IFC Vice President of Judicial Affairs has determined the filed complaint has merit, the member chapter and its inter/national organization is to be provided written notification of the charges at least two weeks in advance of the hearing. This written notification shall include the following:

- A. Date, time and location of their Informal Resolution Hearing;
- B. Description of the alleged violation; and
- C. Due process rights.

Section V. Investigatory Evidence

All evidence related to a complaint shall be compiled and presented to all parties at least one week prior to any informal Resolution Hearing or formal Judicial Board hearing. All evidence shall be directly related to the complaint(s) alleged against the member chapter and shall be approved by the IFC Vice President of Judicial Affairs prior to circulation.

Section VI. Informal Resolution Hearing

Upon a finding of the IFC Vice President of Judicial Affairs that a filed complaint contains information sufficient to warrant further adjudication, he may offer the charged member fraternity the opportunity to participate in an Informal Resolution Hearing unless he feels that potential sanctions could include suspension or loss of IFC recognition.

In cases in which the charged member chapter accepts an Informal Resolution Hearing, the IFC Vice President of Judicial Affairs shall meet with a representative of the charged member chapter to discuss the allegations of the complaint. Within three (3) business days of the Informal Resolution Hearing, the IFC Vice President of Judicial Affairs may dismiss the complaint with a finding of no violations, provide the charged member chapter with his finding of violations and recommendation for a resolution through disciplinary or corrective sanctions. The charged member chapter has three (3) business days to accept or reject the terms of resolution. If the charged member chapter accepts the resolution, the charged member chapter waives all rights of appeal and the outcome is final.

If the charged member chapter rejects offer of an Informal Resolution Hearing or the resolution, a Formal IFC Judicial Board Hearing will be convened to hear the case.

Section VII. Prohibited Sanctions for Informal Resolution Hearing

The IFC Vice President of Judicial Affairs shall not recommend suspension or loss of IFC recognition through an Informal Resolution Hearing. Should the IFC Vice President of Judicial Affairs believe suspension or loss of IFC recognition is warranted, the case shall automatically be referred to a Formal IFC Judicial Board Hearing.

Section VIII. Formal IFC Judicial Board Hearing

If:

- A. The charged member chapter rejects having an Informal Resolution Hearing;
- B. The charged member chapter rejects the findings and/or sanctions of the Informal Resolution Hearing
- C. The IFC Vice President of Judicial Affairs determines the allegation is egregious enough to warrant potential suspension or loss of IFC recognition; or
- D. The IFC Vice President of Judicial Affairs chose not to offer an Informal Resolution Hearing;

The IFC Vice President of Judicial Affairs shall convene a Formal IFC Judicial Board Hearing.

The IFC Vice President of Judicial Affairs shall serve as a non-voting Chief Justice and preside over all formal Judicial Board hearings.

Section IX. Formal IFC Judicial Board Hearing Proceedings

For all IFC Judicial Board hearings, the following procedures shall be followed:

- A. **Participants:** Attendance at all IFC Judicial Board hearings shall be limited to the member chapters involved, any witnesses, the IFC Justices assigned to serve on the Judicial Board for the hearing, the IFC Vice President of Judicial Affairs, and the Interfraternity Council advisor. At the discretion of the IFC Vice President of Judicial Affairs, witnesses may be excluded from the hearing room until it is his or her turn to testify. Additionally, the charged member chapter may be accompanied by its chapter advisor during any Judicial Board hearing. The chapter advisor must be registered as the official chapter advisor of the member chapter. Any advisors present, chapter or council, shall only act in an advisory capacity and are not allowed to conduct any portion of the chapter's presentation or board's procedures.
- B. **Confidentiality:** All individuals involved in a hearing are required to agree to a statement of confidentiality. Individuals shall not disclose information regarding the following:
 - 1. Any individuals, member chapters, or IFC Justices involved.
 - 2. Details of the proceedings
 - 3. Witness testimony.
- C. **Hearing Process:**
 - 1. **Initiation of the Hearing:** The IFC Vice President of Judicial Affairs shall inform all individuals present that the hearing will be conducted in an orderly manner and any person causing disruption will be asked to leave. Additionally, he shall advise the charged member chapter of the formality of the hearing and the necessity of all parties to be truthful.
 - 2. **Overview of Judicial Hearing Process:** The IFC Vice President of Judicial Affairs shall outline the process for the remainder of the hearing as follows:
 - a. **Presentation of alleged charges, violations, and investigatory evidence against the charged member chapter shall be presented by the IFC Vice President of Judicial Affairs:**
 - i. Charged member chapter may ask questions;
 - ii. IFC Justices may ask questions;

- b. Presentation of charged member chapter:
 - i. IFC Justices may ask questions;
- c. Calling of Witnesses
 - i. Charged member chapter may ask questions;
 - ii. IFC Justices may ask questions;
- d. Charged member chapter may give final statement;
- e. IFC Justices deliberate in closed session to determine findings of responsibility and if necessary, appropriate sanction(s).

Section X. Conflicts of Interest

In the event the IFC Vice President of Judicial Affairs' member chapter is involved in the alleged violation, the highest ranking IFC Executive Board officer, starting with the IFC President, as listed in Article V, Section II of the IFC Constitution, shall serve in his stead.

Section XI. Prohibition on Recruitment Restrictions as a Sanction

The IFC Judicial Board may impose educational and punitive sanctions, as prescribed in the IFC Bylaws, but under no circumstances may it prohibit a Member Fraternity's ability to recruit.

Section XII. Non-Status Sanctions

The IFC Judicial Board may impose sanctions that are punitive and/or educational, but not solely financial and do not restrict recruitment. The following are sanctions that may be imposed by the IFC Judicial Board and/or IFC Vice President of Judicial Affairs (including, but not limited to):

- A. Letter of apology
- B. Fines
- C. Restitution
- D. Educational programming
- E. Public service to the campus or community
- F. Meetings with campus office/departments
- G. Loss of social event and/or campus event privileges
- H. Loss of eligibility for IFC Awards
- I. Censure

Section XIII. Status Sanctions

In the event of an egregious violation, the following are sanctions that may be imposed by the IFC Judicial Board for a specified period of time:

- A. Suspension: Loss of IFC voting rights and removal from good standing status, and any additional Non-Status Sanctions.
- B. Loss of IFC Recognition: Loss of IFC recognition and its rights and privileges.

When adjudicating a potential violation that may result in suspension/loss of recognition from the IFC for the member chapter, the Judicial Board shall work collaboratively with the inter/national organization and campus.

Section XIV. Duration of Sanctions

Judicial action shall specify the duration and deadlines of any sanctions imposed. After such specified time, if the member chapter has fulfilled the requirements of the sanctions imposed, the member chapter shall return to good standing. In the event the member chapter does not fulfill all of the requirements of the sanctions imposed, the IFC Vice President of Judicial Affairs shall convene a Formal IFC Judicial Board Hearing to determine future course of action.

Section XV. Notification of Findings

Within three (3) business days of any Informal Resolution Hearing or Formal Judicial Hearing, the IFC Vice President of Judicial Affairs shall communicate in writing to the charged member chapter, its inter/national organization, and its chapter advisor, as well as any relevant **Furman University** administrators, the alleged violation, the findings of the hearing, and any sanction(s) imposed.

The IFC Vice President of Judicial Affairs shall notify the IFC General Body of any sanctions imposed upon a member chapter through any Informal or Formal Judicial Hearing.

Section XVI. Appeals

The IFC Judicial Board's decision is subject to appeal by a member chapter within two weeks of receiving written notification of the decision. Appeals shall be made in writing to the IFC President and shall be made solely on the following grounds or be dismissed:

- A. Error in the charge and/or Judicial Board Hearing process that materially affected the outcome.
- B. The severity of the sanction did not match the severity of the violation.
- C. New information that could not have been discovered prior to the IFC Judicial Board Hearing through the exercise of reasonable diligence.

Sanctions imposed through the Judicial Process shall stand until an appeal is heard.

Section XVII. Non-Status Sanctions Appeals

The IFC Executive Board shall hear appeals for Non-Status Sanctions. The IFC Vice President of Judicial Affairs shall first present the IFC Judicial Board's decision and rationale for its actions. The appealing member chapter shall then be afforded the opportunity to present its reasoning for seeking a reconsideration of the IFC Judicial Board's actions. The appealing chapter must be given at least one week's notice of the time, place, and procedure of the appeal hearing. Any individual from the appealing member chapter serving on the IFC Executive Board shall not participate in the appeal proceedings. The IFC Executive Board may either dismiss the charge(s) with no sanctions or alter the sanctions imposed by the Formal IFC Judicial Board Hearing. Any alterations must be approved by at least two thirds(2/3) if the IFC Executive Board. The decision of the IFC Executive Board shall be final for Non-Status Sanctions.

Section XVIII. Status Sanctions Appeals

The IFC General Body shall hear appeals for Status Sanctions. The IFC Vice President of Judicial Affairs shall first present the IFC Judicial Board's decision and rationale for its

actions. The appealing member chapter shall then be afforded the opportunity to present its reasoning for seeking a reconsideration of the decision. The appealing chapter must be given at least one week's notice of the time, place, and procedure of the appeal hearing. Upon completion of the member chapter appeal presentation, all representatives of the Member Fraternity shall be dismissed from the meeting, including the member chapter's IFC Representative and Alternate Representative.

The IFC General Body shall first vote on whether to discuss dismissal or alteration of the status sanction, which shall require a two-thirds (2/3) vote. In the event the IFC General Body votes to discuss dismissal or alteration, the IFC General Body shall determine by a two-thirds (2/3) vote to either dismiss the charge(s) with no sanctions or to alter the sanctions imposed. If a two thirds (2/3) majority cannot be achieved for dismissal or alteration of the sanctions, the initial sanctions will remain in place.

The decision of the IFC General Body shall be final with no further appeal rights.

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